

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

STEPHEN GRANT RUSSELL,

Plaintiff,

— against —

TOWN OF NEW CASTLE (d/b/a “CHAPPAQUA”), a municipal corporation; and

DONNA GENOVESE, ESQ., individually,

Defendants.

Civil Action No. ____

COMPLAINT FOR DAMAGES UNDER 42 U.S.C. § 1983

PRELIMINARY STATEMENT

1. This action seeks compensatory and punitive damages under 42 U.S.C. § 1983 against a municipality whose police department received direct evidence — including the petitioner’s own written recantation — that the foundational allegation underlying emergency custody proceedings was fabricated, and created one-sided investigative records that ratified the fabrication; and against a court-appointed Attorney for the Child who acted in concert with the presiding judge and court personnel to initiate and prosecute an unconstitutional prior restraint on a father’s whistleblower speech, and who attempted to maintain ex parte influence over the proceedings after the Appellate Division struck the blanket deletion command, dismantled the false default premise, and affirmed only a narrowed remainder — conduct documented by her own resignation letter.
2. Over four years and four documented incidents, the New Castle Police Department received evidence of domestic violence, child injuries, fabricated allegations, and aggressive conduct by Walsh family members in connection with a custody dispute

in Westchester County Family Court (File No. 154703). On each occasion, the department did not merely fail to investigate — it documented Walsh’s version of events while ignoring, dismissing, or suppressing the contrary evidence Plaintiff presented. The resulting one-sided police record was available to the Family Court. Under *Ricciuti v. NYC Transit Authority*, 124 F.3d 123 (2d Cir. 1997), the creation of false or one-sided evidence that is then used in judicial proceedings constitutes an affirmative constitutional deprivation.

3. Donna Genovese was appointed as Attorney for the Child. She never contacted the father. She never cross-examined the mother. She never investigated documented evidence of child abuse. Instead, she acted in concert with Judge Schauer and Court Attorney Michele D’Ambrosio to initiate a speech restriction targeting the father’s republication of public judicial records. When the Appellate Division struck the blanket deletion command and dismantled the false default premise on which the Family Court had proceeded — affirming only a narrowed remainder — Genovese attempted to reappoint herself through an ex parte communication routed through D’Ambrosio to Judge Schauer — a communication Genovese documented in her own resignation letter. The documentary evidence — including Genovese’s own resignation letter — establishes that she acted in concert with the presiding judge and court personnel through an ex parte communication channel to initiate and maintain the speech suppression.

I. JURISDICTION AND VENUE

1. This Court has subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1343, as this action arises under the Constitution and laws of the United States, specifically 42 U.S.C. § 1983 and the First and Fourteenth Amendments.
2. The municipal liability claim against Defendant Town of New Castle is authorized by *Monell v. Department of Social Services*, 436 U.S. 658 (1978). State notice-of-claim requirements do not apply to § 1983 claims brought in federal court. *Felder v. Casey*, 487 U.S. 131 (1988).
3. The individual-capacity claim against Defendant Genovese asserts that she acted under color of state law through concert of action with Judge Schauer and Court

Attorney D’Ambrosio, using state processes (the Order to Show Cause mechanism, the court’s contempt power, and the AFC appointment) to initiate and prosecute a retaliatory speech restriction. See *Lugar v. Edmondson Oil Co.*, 457 U.S. 922, 937 (1982); *Tower v. Glover*, 467 U.S. 914 (1984).

4. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to this action occurred in Westchester County, New York, within the Southern District of New York.
 5. This action seeks damages for affirmative constitutional deprivations — the fabrication of one-sided police records and the retaliatory suppression of protected speech — not the invalidation of any judicial decision. *Heck v. Humphrey*, 512 U.S. 477 (1994), does not bar claims that do not require demonstrating the invalidity of an outstanding criminal conviction or civil judgment.
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II. PARTIES

A. Plaintiff

1. Plaintiff Stephen Grant Russell (“Plaintiff” or “Russell”) is a citizen and resident of the State of California. He is the biological father of E.V., a minor child born in 2017 in San Francisco, California. Plaintiff holds a valid custody order from the San Francisco Superior Court (Case No. FPT-18-377425). He has been subject to custody restrictions for seven years.

B. Municipal Defendant

1. Defendant Town of New Castle (“New Castle” or “Chappaqua”) is a municipal corporation organized under the laws of the State of New York, located in Westchester County. The Town operates the New Castle Police Department. The Town of New Castle is sued under *Monell* for a custom and practice of its police department in creating one-sided investigative records that ratified fabricated allegations and perpetuated constitutional deprivations — documenting the complainant’s version while ignoring or suppressing contrary evidence — across four documented incidents between 2019 and 2023.

C. Individual Defendant

1. Defendant Donna Genovese, Esq. (“Genovese”) served as the Attorney for the Child (“AFC”) appointed by the Westchester County Family Court in File No. 154703. She initiated the speech-restriction Order to Show Cause on October 14, 2021. She filed a 241-page appellate brief defending the speech restriction. She resigned from the appointment on January 9, 2026, via an ex parte letter addressed to Judge Schauer and routed through Court Attorney Michele D’Ambrosio, Esq. (ExRR series; Genovese resignation letter.) She is currently a Court Attorney at the Bronx Supreme Court, Unified Court System. She is sued in her individual capacity.
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III. FACTUAL ALLEGATIONS

A. Background: The Fabricated Foundation

1. In July 2018, Tara Walsh filed a custody petition in Westchester County Family Court seeking emergency jurisdiction under the UCCJEA, predicated on an allegation that Plaintiff had threatened to kill Walsh and the child. Walsh recanted this allegation in a signed letter to the Chappaqua Police Department dated November 23, 2020: “Mr. Stephen Russell never made a threat to kill myself or our daughter [E.V].” (ExM_01.) In text messages dated May 17, 2018, Walsh wrote to an associate: “I seriously don’t think Steve ever had a gun it was all in my head I made up the whole thing.” (ExSS_07.)
2. A California jury found Walsh liable for intentional battery, domestic violence, and intentional infliction of emotional distress, with findings of malice, oppression, and fraud. The judgment of \$332,080.74 was affirmed and domesticated in New York. (ExG_01.)
3. The Family Court relied upon a forensic evaluation by Raymond Griffin, whose CASAC credential was revoked by OASAS on nine grounds including falsification and unauthorized practice of medicine. (ExS_03.) The evaluation was never stricken.

4. Court records were retroactively altered from “ORDER ON DEFAULT” to “after hearing” without judicial order or notice. The Appellate Division found the order was “not entered upon the father’s default.” 214 A.D.3d 890, 891-92 (2d Dep’t 2023). Seven irreconcilable characterizations of the same proceeding exist in the record. (See *Russell v. Byrnes*, No. ___, ¶ 25 (S.D.N.Y.) (companion action detailing the full contradiction table).)

B. Genovese’s Concert of Action with State Actors

1. The Second Circuit holds that law guardians and Attorneys for the Child generally do not act under color of state law for § 1983 purposes when performing traditional advocacy functions. *Milan v. Wertheimer*, 808 F.3d 961 (2d Cir. 2015). However, when a nominally private actor conspires or acts in concert with state actors to deprive constitutional rights, the private actor’s conduct is fairly attributable to the state. *Tower v. Glover*, 467 U.S. 914 (1984); *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982).
2. Genovese did not act alone. She acted in concert with Judge Schauer and Court Attorney Michele D’Ambrosio in a coordinated pattern of conduct directed at suppressing Plaintiff’s whistleblower speech. The concert of action is established by the following documentary evidence:

(i) The Speech-Restriction Sequence (2021-2022)

1. On August 7, 2021, Plaintiff sent a whistleblower email to court administrator Eckel documenting Griffin’s credential fraud and other institutional failures. (ExOO_13.) The JCC complaint was forwarded on or about October 20, 2021. (ExOO_19.)
2. On October 14, 2021 — sixty-eight days after the whistleblower email — Genovese initiated an Order to Show Cause seeking to compel Plaintiff to “erase, deactivate, and delete” publications documenting the institutional failures he had reported. (ExR_02; 214 A.D.3d at 891.) Genovese drafted “agents” language targeting “any persons, entities and/or agents acting on [Russell’s] behalf” — designed to reach third parties assisting Russell, including his partner and journalist Michaelanne Petrella, who was covering the case and had received threats from Walsh. (ExR_02; ExOO_02, ¶6.)

3. On February 2, 2022, Judge Schauer entered the speech restriction from the bench based on Genovese's OSC. The order directed Plaintiff to "erase, deactivate, and delete any existing blogs and likenesses." (ExR_02.) Judge Schauer entered this order without prior notice, without an evidentiary hearing, and without the narrow tailoring required for prior restraints. The entry of the order was the judicial act; Genovese's initiation and prosecution of the OSC was the private act that invoked state power to accomplish the speech suppression.

(ii) The Appellate Prosecution (2022-2023)

1. Genovese filed a 241-page appellate brief defending the speech restriction — fifteen times the length of opposing counsel's brief. (AFC Genovese Brief, Docket No. 2022-02838.) In Point I of the brief, Genovese affirmatively argued that the custody orders were entered "on default" and invoked CPLR § 5511 to bar Russell's appeal — although Russell's attorney was present at the proceeding and participated in the hearing, as the Appellate Division later found. 214 A.D.3d at 891. This is either a knowing misrepresentation to a tribunal under NY RPC 3.3, or advocacy so detached from the factual record that it ceases to be child advocacy.
2. Genovese simultaneously protected Griffin's fraudulent evaluation — accepting it as operative evidence in her brief without challenging the credential fraud — while attacking Plaintiff's speech exposing that fraud. She shielded the fabrication and prosecuted the whistleblowing.
3. The Appellate Division rejected Genovese's arguments. It found the order was "not entered upon the father's default" and modified the order by deleting the blanket deletion provision, substituting a narrower provision directed at blogs referencing the proceedings or disparaging the child's relatives. As so modified, the order was affirmed. 214 A.D.3d at 891-92. The Appellate Division upheld the remaining narrowed speech restriction as tailored to the needs of the case. *Id.* In substance, the Appellate Division struck the blanket deletion command as constitutionally overbroad, rewrote the restraint, and rejected the false default premise that Genovese had affirmatively defended in her appellate brief — dismantling both the overbroad speech provision and the procedural foundation on which the Family Court had built its coercive framework.

(iii) The Ex Parte Reappointment Attempt and Resignation (2025-2026)

1. On or about December 30, 2025, Plaintiff filed a pro se modification petition. Within approximately ten days, Judge Schauer sent the petition to Genovese through the court portal — signaling contemplated reappointment of the AFC who had initiated the unconstitutional gag order.
2. On January 9, 2026, Genovese responded with a resignation letter. The letter was addressed to Hon. Michelle I. Schauer and routed through “Attention: Michele D’Ambrosio, Esq.” at mdambros@nycourts.gov. D’Ambrosio is a Court Attorney — not a clerk — serving in the Westchester County Family Court. (Genovese resignation letter.)
3. Plaintiff was not served with Genovese’s resignation letter, was not notified of it through any official channel, and learned of it only through independent investigation. The routing of an AFC’s resignation through a court attorney to the presiding judge, without notice to any party, is an ex parte communication. It is documented by Genovese’s own writing.
4. This letter is the direct evidence of the concert of action:
 - a. **It proves ex parte communication between Judge Schauer and Genovese.** The petition was sent to Genovese through the court portal without notice to Plaintiff. Genovese responded directly to Judge Schauer without notice to Plaintiff.
 - b. **It identifies the intermediary.** D’Ambrosio is named, credentialed (Esq.), and reachable (mdambros@nycourts.gov) — confirming her role as conduit for judicial-AFC communications outside normal court channels.
 - c. **It reveals the purpose of the communication.** Judge Schauer’s response to Plaintiff’s new filing was to reach for the AFC who had initiated the unconstitutional speech restriction — not normal case management, but an attempt to reactivate the instrument of speech suppression.
 - d. **It establishes that Genovese declined only on logistical grounds.** She had a new job at the Bronx Supreme Court. She did not decline on ethical grounds, did not flag the impropriety of the ex parte contact, and did not notify Plaintiff.

5. The concert of action is further evidenced by the temporal sequence: Genovese argued “on default” in her appellate brief; the Appellate Division rejected the characterization; the CMS record was subsequently altered from “on default” to “after hearing” — a characterization that would have avoided the appellate issue entirely. The alteration was not authorized by any disclosed judicial order. On information and belief, Defendant Genovese, now employed as a Court Attorney within the Unified Court System, had access to or knowledge of the CMS reclassification.

C. Genovese’s Conduct Was Not Traditional AFC Advocacy

1. Traditional AFC advocacy involves representing the child’s interests in custody proceedings: interviewing parents, investigating conditions, consulting with experts, and presenting positions to the court. Milan protects this advocacy function.
2. Genovese’s challenged conduct is categorically different:
 - a. She initiated an unconstitutional prior restraint on public-record speech — OASAS revocation orders, appellate decisions, legislative testimony — that had no bearing on the child’s welfare.
 - b. She drafted “agents” language designed to use contempt power against third-party journalists covering institutional failures.
 - c. She filed a 241-page brief at a 15:1 disparity with opposing counsel, defending a content-based speech restriction without First Amendment analysis — reflecting advocacy for the suppression of speech, not for the child.
 - d. She attempted to maintain ex parte influence over the proceedings after the AD struck the blanket deletion command and dismantled the default premise — through a documented ex parte communication channel.
 - e. She never contacted the father, never cross-examined the mother, never investigated documented evidence of child abuse (pinch marks and strike marks documented by three independent witnesses), and billed \$46,920 for representation of a child who was approximately one year old at the time of appointment.

3. No reasonable attorney could believe that seeking a court order compelling the deletion of public judicial records was consistent with clearly established First Amendment law. *Nebraska Press Ass'n v. Stuart*, 427 U.S. 539 (1976); *Organization for a Better Austin v. Keefe*, 402 U.S. 415 (1971). Qualified immunity does not shield Defendant Genovese.

D. New Castle Police Department — Fabrication of One-Sided Records (2019-2023)

1. On March 31, 2019, three independent adults documented bruises and injuries on E.V. following a visit with Walsh: Talia Kleiman (nanny), Franceska Anilus (CFS supervisor), and Plaintiff. (ExEE_02.) Plaintiff contacted the New Castle Police Department. Detective Christopher Ragni responded and confirmed that bruising and a rash were observed on the child. The detective nevertheless concluded that the injuries did not reach the level of criminality after accepting the Walsh grandparents' assurance that the bruises were normal childhood injuries — over the observations of three independent witnesses, none of whom were related to Plaintiff. No evidentiary hearing, referral to child protective services, or follow-up investigation was conducted. Walsh's attorney subsequently characterized the police report concerning the bruises as an act of "retaliation" by Plaintiff, and the court accepted this characterization without an evidentiary hearing.
2. On the same day, Stephen Walsh Sr. confronted Plaintiff at the Walsh family driveway during a custody exchange in an aggressive and threatening manner, despite prior police advisement. The New Castle Police Department took no action.
3. On September 21, 2019, court-appointed supervisor Claudette LaMelle conducted her first visit with Plaintiff and E.V. At the exchange location near the Walsh family compound, LaMelle and Plaintiff were confronted by individuals in a darkened car who began aggressively yelling. LaMelle subsequently contacted police, reporting that she had never experienced such fright. Walsh's attorney then unilaterally removed LaMelle as supervisor.
4. On November 23, 2020, Walsh sent a retraction letter to the Chappaqua Police Department admitting: "Mr. Stephen Russell never made a threat to kill myself or our daughter [E.V.]" (ExM_01.) The retraction vitiated the foundational allegation underlying the emergency custody petition. The New Castle Police Department

received this direct admission and took no action — no investigation, no referral to the Family Court, no report to the District Attorney.

5. Following the domestication of the California judgment in New York, the New Castle Police Department received notice that a California jury had found Walsh liable for battery, domestic violence, and IIED with malice. Despite this adjudicated finding — combined with the retraction, the documented bruises, and the pattern of aggressive conduct — the department took no action.
 6. The pattern across four incidents is not mere inaction. Under *Ricciuti v. NYC Transit Authority*, 124 F.3d 123 (2d Cir. 1997), the department did not simply fail to act — it created one-sided records. On each occasion, the department documented Walsh’s version (or accepted her family’s assurances) while ignoring, dismissing, or suppressing the contrary evidence Plaintiff presented. The police reports from these incidents created a paper trail that ratified Walsh’s fabricated narrative and was available to the Family Court. This is the fabrication of a one-sided evidentiary record — the same constitutional injury *Ricciuti* identifies.
 7. The pattern is consistent across different factual predicates (bruises, confrontation, retraction, jury verdict), different officers responding to different incidents, and different years (2019, 2020, 2023) — demonstrating an institutional practice rather than individual officer judgment. The final policymaker for the New Castle Police Department’s investigative policies is the Chief of Police. *Pembaur v. City of Cincinnati*, 475 U.S. 469, 483 (1986); *City of St. Louis v. Praprotnik*, 485 U.S. 112, 127 (1988). Alternatively, the department’s repeated failure to act on escalating evidence — from disputed bruise observations to a signed retraction of the foundational allegation to a jury verdict finding the petitioner liable for violence — constitutes deliberate indifference to a known pattern of fabricated allegations, each of which was available to and relied upon by the Family Court in the proceeding that separated Plaintiff from his daughter.
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IV. CAUSES OF ACTION

COUNT ONE: First Amendment Retaliation (42 U.S.C. § 1983) — Against Defendant Genovese (Individual Capacity)

1. Plaintiff incorporates by reference all preceding paragraphs.
2. Plaintiff engaged in constitutionally protected activity: he exposed Griffin's credential fraud to OASAS and the court (ExS_01-03), sent a whistleblower email to court administrator Eckel (ExOO_13), filed a complaint with the Commission on Judicial Conduct (ExOO_19), filed complaints with the FBI, the New York Attorney General, and eight additional government agencies, and published public judicial records through the ChappaquaPoison documentary blog. This speech addresses matters of public concern. *Connick v. Myers*, 461 U.S. 138, 146 (1983).
3. Defendant Genovese, acting in concert with Judge Schauer and Court Attorney D'Ambrosio, took adverse action against Plaintiff in retaliation for this protected activity. The temporal proximity — sixty-eight days after the whistleblower email — establishes a prima facie inference of retaliation. *Espinal v. Goord*, 558 F.3d 119, 129 (2d Cir. 2009). The JCC complaint was forwarded on October 20, 2021 (ExOO_19), sixteen days before the November 5 proceeding at which the default framework was imposed, further evidencing the retaliatory sequence.
4. Genovese acted under color of state law because she used state processes — the OSC mechanism, the court's contempt power, the AFC appointment — to initiate and prosecute the speech restriction, and she did so in concert with the presiding judge (who entered the order) and court personnel (who facilitated ex parte communications). *Lugar*, 457 U.S. at 937; *Tower*, 467 U.S. at 914. The concert of action is documented by Genovese's own resignation letter, which identifies the ex parte communication channel (Schauer → D'Ambrosio → Genovese), confirms that the channel was used in connection with Plaintiff's filings, and establishes that Genovese did not flag the impropriety.
5. Genovese's conduct caused concrete, ongoing harm: destroyed journalist and publisher relationships, prevented collaboration on the documentary book project, forced self-publication, eliminated revenue potential from media partnerships, and chilled third-party speech. Journalist Michaelanne Petrella received explicit threats

from Walsh, warning her that she was “putting herself in harm’s way” for reporting on this case. (ExOO_02, ¶6.)

6. The original blanket order — directing deletion of “any existing blogs and likenesses” — was procured by Genovese through the OSC mechanism and entered by Judge Schauer without notice, evidentiary hearing, or the narrow tailoring required for prior restraints. The “agents” language extended the restriction to third-party journalists and publishers assisting Plaintiff. The Appellate Division modified the order by deleting the blanket provision and substituting a narrower directive. As so modified, the order was affirmed. Plaintiff does not ask this Court to hold the Appellate Division’s modified order unconstitutional. Plaintiff alleges that the original blanket apparatus was procured in retaliation for whistleblower speech; that the “agents” language was designed to suppress third-party journalistic coverage of institutional failures; and that the modified order’s text — directed at “existing blogs” and child likenesses posted in connection with such blogs — does not reach a subsequently published documentary book addressing matters of public concern. To the extent Defendants threaten enforcement of the modified order against the book or against third parties who assisted in its publication, such enforcement would exceed the order’s text and constitute a continuing First Amendment violation.

COUNT TWO: Municipal Liability Under Monell (42 U.S.C. § 1983) — Against Defendant Town of New Castle

1. Plaintiff incorporates by reference all preceding paragraphs.
2. Under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), a municipality may be held liable under § 1983 when a constitutional violation was caused by an official policy, widespread custom or practice, or a decision by a final policymaker. The municipality’s policy or custom must be the “moving force” behind the deprivation. *Id.* at 694.
3. Defendant Town of New Castle, through its police department, maintained a custom and practice of creating one-sided investigative records in connection with custody-related domestic violence reports:

- a. Received and dismissed evidence of bruises on E.V. documented by three independent witnesses (March 31, 2019), accepting the Walsh family's assurance over unrelated observers, conducting no follow-up or referral;
 - b. Witnessed aggressive conduct by Walsh Sr. during a custody exchange and took no action (March 31, 2019);
 - c. Received Walsh's retraction letter admitting the foundational allegation was fabricated (November 23, 2020) and took no action — no investigation, no referral, no report to the DA;
 - d. Received notice that a California jury had found Walsh liable for battery, domestic violence, and IIED with malice (post-domestication, 2023) and took no action.
4. This pattern constitutes the fabrication of one-sided evidentiary records under *Ricciuti v. NYC Transit Authority*, 124 F.3d 123 (2d Cir. 1997). The department selectively documented Walsh's allegations while suppressing Plaintiff's evidence, witness statements, the petitioner's own retraction, and a California jury verdict. The resulting one-sided record was available to and relied upon by the Family Court. The department's conduct was a moving force behind the perpetuation of the constitutional deprivations alleged herein, including retaliatory suppression of Plaintiff's speech and the continued enforcement of orders premised on an unresolved and retroactively altered procedural record.
 5. The final policymaker is the Chief of Police. The pattern — consistent across four incidents over four years — reflects a custom or practice attributable to the municipality. *Pembaur*, 475 U.S. at 483; *Praprotnik*, 485 U.S. at 127.
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V. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

A. **Award** compensatory damages against Defendant Genovese for: lost income from the ChappaquaPoison book project, destroyed journalist and publisher relationships, cost of forced self-publication, emotional distress from forced silence on matters of public concern, and reputational harm;

B. **Award** punitive damages against Defendant Genovese for her willful and malicious conduct in initiating and prosecuting an unconstitutional prior restraint targeting whistleblower speech, in filing a retaliatory appellate brief, and in maintaining ex parte influence over the proceedings after the Appellate Division struck the blanket deletion command and dismantled the false default premise;

C. **Award** compensatory damages against Defendant Town of New Castle for injuries caused by the Town's custom and practice of fabricating one-sided investigative records — including the suppression of three independent witnesses' observations of child injuries, the failure to investigate or refer Walsh's written admission that the foundational allegation was fabricated, and the creation of a police record that ratified the fabrication and was available to the Family Court — which perpetuated the constitutional deprivations alleged herein, including retaliatory suppression of Plaintiff's speech and the continued enforcement of orders premised on an unresolved and retroactively altered procedural record;

D. **Award** costs and such further relief as the Court deems just and proper;

E. **Grant** such other and further relief as this Court deems just and proper.

VI. JURY DEMAND

Plaintiff demands a trial by jury on all claims and issues triable by jury.

Respectfully submitted,

[DATE]

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(415) 999-3944 sg.russ@aol.com

VERIFICATION

I, Stephen Grant Russell, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that I have read this Complaint, that the factual allegations are true and correct to the best of my

knowledge, information, and belief, and that the legal claims are well-grounded in law and supported by the evidence described herein.

Dated: __, 2026 Santa Barbara, California

STEPHEN GRANT RUSSELL